

**RESOLUTION DECLARING TRANSPORTATION  
IMPRACTICAL FOR THE 2023-2024 SCHOOL YEAR**

The Board of Education of the Brecksville-Broadview Heights City School District, Cuyahoga County, met in regular session this 25th day of October 2023, with the following members present:

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\_\_\_\_\_ moved and \_\_\_\_\_ seconded the adoption of the following resolution:

**WHEREAS**, pursuant to section 3327.02 of the Revised Code, the Board of Education of the Brecksville-Broadview Heights City School District (“Board” or “Board of Education” or “District”) may determine that it is impractical to transport a pupil who is eligible for transportation to and from a school under section 3327.01 of the Revised Code after considering each of the following factors:

1. The time and distance required to provide the transportation
2. The number of pupils to be transported
3. The cost of providing transportation in terms of equipment, maintenance, personnel, and administration
4. Whether similar or equivalent service is provided to other pupils eligible for transportation
5. Whether and to what extent the additional service unavoidably disrupts current transportation schedules; and
6. Whether other reimbursable types of transportation are available

**WHEREAS**, the Board must make such determination not later than thirty (30) calendar days prior to the District’s or the school’s first day of instruction, or in the case of a student who enrolls within thirty (30) calendar days prior to the first day of instruction or on or after the first day of instruction, not later than fourteen (14) calendar days after the students enrollment; and

**WHEREAS**, in light of the above-stated timelines set forth in section 3327.02 of the Revised Code and pursuant to same, the Superintendent has the authority to make the determination of impracticality prior to the next Board meeting, with the Superintendent’s determination considered by the Board at its next meeting; and

**WHEREAS**, in accordance with section 3327.02 of the Revised Code, the Board shall report its determination to the Ohio Department of Education and shall further issue a letter to the pupil’s parent, guardian, or other person in charge of the pupil, as well as issue a letter to the nonpublic or community school in which the pupil is enrolled with a detailed description of the reasons for which such determination was made; and

**WHEREAS**, after a determination declaring the impracticality of transportation is made pursuant to this Resolution, the Board shall offer to provide payment in lieu of transportation by informing the pupil's parent, guardian, or other person in charge of the pupil of this Resolution and of the right of the pupil's parent, guardian, or other person in charge of the pupil to accept the offer of payment in lieu of transportation or reject the Board's offer of payment in lieu of transportation.

**NOW, THEREFORE, BE IT RESOLVED** based on the Board's consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, as well as the specific factors listed in this paragraph, the Board of Education hereby declares transportation impractical for the 2023-2024 school year via this Resolution for the pupils attending Padua Franciscan High School as listed in Exhibit A, determined on an individual and case-by-case basis, based on: (1) the cost to the District will be approximately \$48,000 per year to run an additional bus, which includes the costs of hiring and training a new bus driver, fuel and bus maintenance; (2) the school's bell schedule conflicts with the District's schedule and would require the District to re-route its own students which would cause one or more of the District's routes to be over an hour long.

**BE IT FURTHER RESOLVED** that based on the Board's consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, as well as the specific factors listed in this paragraph, the Board of Education hereby declares transportation impractical for the 2023-2024 school year via this Resolution for the pupil attending Insightful Minds as listed in Exhibit B, determined on an individual and case-by-case basis, based on: (1) there is only one student requesting transportation to this particular non-public school; (2) the cost to the District will be approximately \$48,000 per year to run an additional bus, which includes the costs of hiring and training a new bus driver, fuel and bus maintenance; and (3) the school's bell schedule conflicts with the District's schedule and would require the District to re-route its own students which would cause one or more of the District's routes to be over an hour long.

**BE IT FURTHER RESOLVED** that the Brecksville-Broadview Heights City School District hereby offers the parent, guardian, or other person in charge of the pupil payment in lieu of providing transportation, and hereby directs the Superintendent and Treasurer or designee(s) to provide notification to the parent, guardian, or other person in charge of the pupil of the Board's determination and of the right to accept or reject this offer as set forth herein and in accordance with section 3327.02 of the Revised Code.

**BE IT FURTHER RESOLVED** that it is hereby found and determined that all formal actions of the Board concerning and relating to the adoption of this Resolution were adopted in an open meeting of the Board, and that all deliberations of the Board and any of its committees that resulted in such formal action were open to the public when required by law, in full compliance with the law.

UPON ROLL CALL, on passage of the foregoing resolution, the vote was as follows:

|       | <u>Yea</u> | <u>Nay</u> |
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## **Exhibit A – Padua Franciscan High School**

1. Rocco Luciano

## **Exhibit B – Insightful Minds**

1. Angeline Bican